

ing off the money, and who but the trustee can receive it back (*c*). Indeed a power of *investment* has been held to carry with it a power of *varying the securities* (*d*). Where, however, the trustee was directed to invest upon *security*, but *real security* was not mentioned, and he lent upon a *mortgage*, the Court did not think it so clear that the trustee could sign a receipt when the money was paid off as to compel a purchaser to take a title which depended on that question (*e*). The power of signing a receipt in such cases turns on the intention as collected from the instrument, and unless it contain authority to lend on a *mortgage* no power of signing a receipt when the mortgage money is paid off is implied.

14. Power of sale and exchange.—A power of signing receipts was held not to be implied in a power of sale and exchange (*f*). But in that case it was a mere power of sale and exchange and not the ordinary power inserted in settlements, accompanied with directions for laying out on another purchase with interim investment on securities.

*** 15. Charge of debts.**—The case in which a testa- [*461] tor, instead of devising the estate upon an *express trust* for payment of debts, creates a *charge* of debts upon his real estate, seems to require particular examination. It might have been a simple and useful rule to hold under such circumstances that the executor, and the executor only, as the person who has administration of the *personal* assets, should, by virtue of an implied power, sell the real estate for payment of the debts; but no such rule ever existed, and we proceed, therefore, to ascertain, as far as we can, by what principle the Court is guided.

a. Devise to trustees with a charge of debts.—If a testator *charge* his real estate with debts, and then *devises it to trustees* upon certain trusts, which do not provide for a sale or perhaps even negative the intention of conferring a power of sale, can the *trustees* give a good title to a purchaser? It is clear that [subject to the restrictions arising under the

(*c*) Wood v. Harman, 5 Mad. 368.

(*e*) Hanson v. Beverly, Sugd.

(*d*) Re Cooper's Trust, W. N. 1873, p. 87.

Vend. & P. 848, 11th edit.

(*f*) Cox v. Cox, 1 K. & J. 251.